

Equity. An executor once become responsible by actual receipt of any part of the assets could not at law have founded his discharge in respect thereof as against a creditor, either by a plea of reasonable confidence disappointed, or a loss not occasioned by any negligence or default; as if an executor transmitted a sum to *his co-executor [*257] under circumstances that in equity would have justified the confidence, a Court of law would still have held him responsible for any misapplication by the co-executor, and could not allow him to plead *plene administravit* (a). But now that [the rules of equity prevail over the rules of the common law where they conflict, the distinction has disappeared (b).]

12. **Delegation of a discretionary trust.** — If the trust be of a *discretionary* character, not only is the trustee answerable for all the mischievous consequences of the delegation, but the exercise of the discretion by the substitute will be actually void (c).

Thus an advowson was vested in twenty-five of the principal inhabitants of a parish upon trust to elect and present a proper preacher, and some of the trustees having deputed *proxies* to vote at the election, Lord Hardwicke held that, as the election had been conducted in this manner, it could not be supported (d).

[Trustees may however enquire what are the wishes and opinions of others, especially of those who are interested, before finally determining what in the exercise of their own discretion they think expedient, and will not be held to act against their own judgment, if they should in the end disregard objections to which they had previously given weight (e).]

13. **Not permitted, though to a co-trustee.** — And a *discretionary* trust can no more be delegated to a *co-executor* or *co-*

(a) *Crosse v. Smith*, 7 East, 246; and see *Jones v. Lewis*, 2 Ves. 241.

(b) 36 & 37 Vict. c. 66, s. 25, subs. 11; *Job v. Job*, 6 Ch. D. 562; and see *Re Radcliffe*, 7 Ch. D. 733.]

(c) See *Alexander v. Alexander*, 2 Ves. 643; *Bradford v. Belfield*, 2

Sim. 264; *Hitch v. Leworthy*, 2 Hare, 200.

(d) *Attorney-General v. Scott*, 1 Ves. 413, see 417; *Wilson v. Dennison*, Amb. 82; S. C. 7 B. P. C. 206.

[(e) *Fraser v. Murdoch*, 6 App. Cas. 855.]